

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
WILLIAM DIGGS and ROBERT DAVIS,

SUMMONS

Plaintiffs,

-against-

Plaintiff designates
BRONX County as the
place of trial.

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. GERSON CABRERA, Cpt. JOHNNY
A. ORELLANA and OFFICER[S] JOHN AND JAMES
DOE, names being fictitious and meant to designate
additional offending officers,

The basis of venue is:
CPLR 56.2

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

August 12, 2013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiffs

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL

100 Church Street, 4th Floor, Law Dept.

New York, New York 10007

P.O. Gerson Cabrera, Shield # 07520, 44th Precinct 2 East 169th Street, Bronx NY 10452 and

Cpt. Johnny A. Orellana, Tax Reg # ***679, 103rd Pct., 168-02 P.O. Edward Byrne Ave., Queens NY 11432

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
WILLIAM DIGGS and ROBERT DAVIS

Index No.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. GERSON CABRERA, Cpt. JOHNNY
A. ORELLANA and OFFICER[S] JOHN AND JAMES DOE,
names being fictitious and meant to designate additional
offending officers,

Defendants.
-----X

Plaintiffs, by their attorney, **Jonathan L. Gleit, Esq.**, complain of the

Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFFS WILLIAM DIGGS and ROBERT DAVIS

1. At the time of the commencement of this action, plaintiffs WILLIAM DIGGS and ROBERT DAVIS were and still are residents of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

COUNTY CLERK
BRONX COUNTY

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3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about June 19, 2012, P.O. GERSON CABRERA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about June 19, 2012, at approximately 11:30 P.M., P.O. GERSON CABRERA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about June 19, 2012, Cpt. JOHNNY A. ORELLANA [then known as LT. JOHNNY A. ORELLANA] was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about June 19, 2012, at approximately 11:30 P.M., Cpt. JOHNNY A. ORELLANA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about June 19, 2012, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about June 19, 2012 at approximately 11:30 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about June 19, 2012 at approximately 11:30 P.M., at or near 1027 College Avenue, Bronx, New York, the plaintiff WILLIAM DIGGS was improperly arrested and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest, search or confine WILLIAM DIGGS.

12. That during the arrest of WILLIAM DIGGS, the defendants utilized unreasonable, unnecessary, unjustified excessive force.

13. That on or about June 19, 2012 at approximately 11:30 P.M., at or near 1023 College Avenue, Bronx, New York, the plaintiff ROBERT DAVIS was improperly arrested confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest, search or confine ROBERT DAVIS.

14. That during the arrest of ROBERT DAVIS, the defendants utilized unreasonable, unnecessary, unjustified excessive force.

15. That the defendants, their agents, servants and/or employees arrested and confined the plaintiffs WILLIAM DIGGS and ROBERT DAVIS without any basis in law or fact and without reasonable, probable or just cause, justification or privilege.

16. That the defendants, their agents, servants and/or employees arrested the plaintiffs WILLIAM DIGGS and ROBERT DAVIS without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

17. That following the arrest of ROBERT DAVIS, at the 44th Precinct, 2 East 169th Street, Bronx New York, the defendants, their agents, servants and/or employees strip searched plaintiff ROBERT DAVIS without a reasonable, articulable suspicion that he was secreting evidence underneath clothing or within a bodily cavity.

18. That the defendants P.O. GERSON CABRERA, Cpt. JOHNNY A. ORELLANA and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiffs WILLIAM DIGGS and ROBERT DAVIS thereby causing them to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

19. That defendants, their agents, servants and/or employees continued to prosecute plaintiffs WILLIAM DIGGS and ROBERT DAVIS and deny and threaten their freedom after they knew, or should have known, they were innocent of all charges being alleged against them.

20. That all criminal charges brought against plaintiffs which were brought under docket number 2012BX035904 for WILLIAM DIGGS and 2012BX035905 for ROBERT DAVIS in the Criminal Court of the City of New York, County of Bronx, regarding the incidents of June 19, 2012, were dismissed by Hon. Miriam R. Best, an Acting Justice of the Supreme Court, on November 2, 2012 and the criminal proceedings were terminated in plaintiffs' favor.

21. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecutions of WILLIAM DIGGS and ROBERT DAVIS.

22. As a result of the malicious prosecutions, plaintiffs WILLIAM DIGGS and ROBERT DAVIS were deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of unjust criminal prosecutions, and were otherwise damaged and injured and forced to defend their liberty for a period of approximately one hundred and thirty six days.

23. That the defendants, their agents, servants and/or employees unlawfully and without privilege, arrested, intended to and did detain and confine, imprisoned and searched the plaintiffs WILLIAM DIGGS and ROBERT DAVIS and took their property without any basis in law or fact, and plaintiffs being aware of their unlawful

confinement without their consent, were thereby caused freight, shock, emotional distress and physical consequences.

24. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and to subjugate minority population without reprimand to the offending officers. Said policy and procedure of having arrest quotas or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses officers were expected to make certain arrest goals. Said arrest quota and/or productivity goals lead to a practice and procedure of, for instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law

Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

25. Furthermore defendants had a policy and procedure of arresting persons for such charges as resisting arrest or obstructing governmental administration or disorderly conduct in ill fated attempts at justifying defendants' unlawful arrests of persons and unnecessary unjustified excessive force and without individualized reasonable or probable cause of such charges, and is demonstrated by multiple individuals have been subject to the same unjustified and fabricated charges, to wit, as a sample and small example: ESHAWN SUTTON was wrongfully subject to similar charges after being assaulted by P.O. JOEY RODRIGUEZ on or about August 17, 2010 at approximately 1:55 P.M., in front of 500 East 165th Street, Bronx, New York ; ARAMIS RODRIGUEZ was wrongfully subject to similar charges after being assaulted by Det. LISANDRO RIVERA on or about April 10, 2009 at approximately 2:30 P.M., at the southeast corner of Faile Street and Westchester Ave. , Bronx, New York; JUAN VALDIVIA was wrongfully subject to similar charges after being assaulted by P.O. JAIRO GONZALEZARANGO and P.O. ROBERT GAZSY on or about January 16, 2010 at approximately 7:15 P.M., at 106 West 143rd Street, New York, New York; BENETIO MYTON was wrongfully subject to similar charges after being assaulted by P.O.

ELEANOR WALSH and P.O. BRANDON RAVELO on or about March 30, 2010 at approximately 8:45 P.M., at or near the intersection of East 220th Street and White Plains Road, Bronx, New York and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

26. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to such individuals such as, for instance, on April 17, 2009 EDGAR TORRES and JASON RIVERA were improperly strip searched by officers of the 44th Precinct ; on February 16, 2010 DANIEL TORRES was improperly strip searched by officers of the 44th Precinct; on April 14, 2010 JUAN QUINONES was improperly strip searched by officers of the 44th Precinct; on June 17, 2010 JUSTIN JACKSON was improperly strip searched by officers of the 44th Precinct; DANIEL AGUERO was improperly strip searched by officers of the 44th Precinct on February 2, 2011; On January 14, 2011, EDDY PEREZ was improperly strip searched by officers of the 44th Precinct; on February 9, 2011 DANIEL AGUERA was improperly strip searched by officers of the 44th Precinct, and is well evidenced by the May 14, 2004 letter by the

Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

27. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiffs of rights secured by the Constitution and laws of the United States, including, but not limited to their First Amendment right of freedom of expression, Fourth Amendment right to be free from unlawful seizures of his person, Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

28. That no negligence or actions on the part of the plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

29. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

30. That as a result of the foregoing, the plaintiffs WILLIAM DIGGS and ROBERT DAVIS were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFFS WILLIAM DIGGS and ROBERT DAVIS

31. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 30 as though more fully set forth herein.

32. That on or about September 13, 2012, and within 90 days after the claims herein sued upon, plaintiffs WILLIAM DIGGS and ROBERT DAVIS caused Notices of Claim, sworn to by or on behalf of the claimants, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff WILLIAM DIGGS on January 20, 2013 and ROBERT DAVIS on

March 5, 2013 and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based.

33. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

34. That on or about June 19, 2012 at approximately 11:30 P.M., at or near 1027 College Avenue, Bronx, New York, the plaintiff WILLIAM DIGGS was improperly arrested and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest, search or confine WILLIAM DIGGS.

35. That during the arrest of WILLIAM DIGGS, the defendants utilized unreasonable, unnecessary, unjustified excessive force.

36. That on or about June 19, 2012 at approximately 11:30 P.M., at or near 1023 College Avenue, Bronx, New York, the plaintiff ROBERT DAVIS was improperly arrested and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest, search or confine ROBERT DAVIS.

37. That during the arrest of ROBERT DAVIS, the defendants utilized unreasonable, unnecessary, unjustified excessive force.

38. That at all times herein mentioned, defendants, their agents, servants and / or employees, deprived the plaintiffs WILLIAM DIGGS and ROBERT DAVIS of Due Process under Law.

39. That the defendants, their agents, servants and/or employees arrested and confined the plaintiffs WILLIAM DIGGS and ROBERT DAVIS without privilege or warrant and without any basis in law or fact and without reasonable, probable or just cause or justification.

40. That the defendants, their agents, servants and/or employees arrested the plaintiffs WILLIAM DIGGS and ROBERT DAVIS without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

41. That the defendants, their agents, servants and/or employees unlawfully and without privilege arrested, intended to and detained, imprisoned and searched the plaintiffs WILLIAM DIGGS and ROBERT DAVIS and took their property without any basis in law or fact, and plaintiffs being aware of their unlawful confinement without their consent, were thereby caused freight, shock, emotional distress and physical consequences.

42. That no negligence or actions on the part of the plaintiffs WILLIAM DIGGS and ROBERT DAVIS contributed to the occurrences alleged herein in any manner whatsoever.

43. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

44. That as a result of the foregoing, the plaintiffs WILLIAM DIGGS and ROBERT DAVIS were damaged in a sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFFS WILLIAM DIGGS and ROBERT DAVIS

45. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 44 as though more fully set forth herein.

46. That on or about December 13, 2012, and within 90 days after the claims herein sued upon, plaintiffs WILLIAM DIGGS and ROBERT DAVIS caused Notices of Claim, sworn to by or on behalf of the claimants, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damage

or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff WILLIAM DIGGS on January 20, 2013 and ROBERT DAVIS on March 5, 2013 and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based.

47. That the defendants, their agents, servants and/or employees prosecuted criminal actions against the plaintiff WILLIAM DIGGS and ROBERT DAVIS without any basis in law or fact and without a reasonable belief in the success of the prosecutions.

48. That the defendants P.O. GERSON CABRERA, Cpt. JOHNNY A. ORELLANA and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal actions against plaintiffs thereby causing them to suffer an unlawful seizure of their persons and property.

49. That defendants, their agents, servants and/or employees continued to prosecute plaintiffs and deny and threaten their freedom after they knew, or should have known, they were innocent of all charges being alleged against him.

50. That all criminal charges brought against plaintiffs WILLIAM DIGGS and ROBERT DAVIS, which were brought under docket number 2012BX035904 for WILLIAM DIGGS and 2012BX035905 for ROBERT DAVIS in the Criminal Court of the City of New York, County of Bronx, regarding the incidents of June 19, 2012, were dismissed by Hon. Miriam R. Best, an Acting Justice of the Supreme Court, on November 2, 2012 and the criminal proceedings were terminated in plaintiffs' favor.

51. That by reason of the aforementioned, the defendants actions amounted to malicious prosecution.

52. As a result of the malicious prosecutions, plaintiffs WILLIAM DIGGS and ROBERT DAVIS were deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and were otherwise damaged and injured. The plaintiffs made court appearances to defend their liberty against these unjust charges over a period of approximately one hundred and thirty six days.

53. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

54. That as a result of the foregoing, the plaintiffs WILLIAM DIGGS and ROBERT DAVIS were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF WILLIAM DIGGS

55. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 54 as though more fully set forth herein.

56. That on or about June 19, 2012 at approximately 11:30 P.M., at or near 1027 College Avenue, Bronx, New York, the plaintiff WILLIAM DIGGS during the aforementioned arrest, was subjected to improper, unnecessary, unjustified and excessive force by the defendants, their agents, servants and/or employees.

57. That the defendants, their agents, servants and/or employees utilized unnecessary, unjustified and excessive force against the plaintiff WILLIAM DIGGS without any basis in law or fact and without reasonable, probable or just cause or justification.

58. That no negligence or actions on the part of the plaintiff WILLIAM DIGGS contributed to the occurrences alleged herein in any manner whatsoever.

59. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

60. That as a result of the foregoing, the plaintiff WILLIAM DIGGS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF ROBERT DAVIS

61. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 60 as though more fully set forth herein.

62. That on or about June 19, 2012 at approximately 11:30 P.M., at or near 1023 College Avenue, Bronx, New York, during the aforementioned arrest, the plaintiff ROBERT DAVIS was subjected to improper, unnecessary, unjustified and excessive force by the defendants, their agents, servants and/or employees

63. That the defendants, their agents, servants and/or employees utilized unnecessary, unjustified and excessive force against the plaintiff ROBERT DAVIS without any basis in law or fact and without reasonable, probable or just cause or justification.

64. That following the arrest of ROBERT DAVIS, at the 44th Precinct, 2 East 169th Street, Bronx New York, the defendants, their agents, servants and/or employees strip searched plaintiff ROBERT DAVIS without a reasonable, articulable suspicion that he was secreting evidence underneath clothing or within a bodily cavity.

65. That no negligence or actions on the part of the plaintiff ROBERT DAVIS contributed to the occurrences alleged herein in any manner whatsoever.

66. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

67. That as a result of the foregoing, the plaintiff ROBERT DAVIS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFFS WILLIAM DIGGS and ROBERT DAVIS

68. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 67 as though more fully set forth herein.

69. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

70. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrest of individuals, and in the utilization of excessive force.

71. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiffs WILLIAM DIGGS and ROBERT DAVIS were denied freedom and rights under the federal and state constitutions and received

great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiffs were made, still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiffs and for the purchase of drugs and medicines, and that plaintiffs were and in the future will be prevented from attending to plaintiffs' usual vocations and avocations; all to the plaintiffs' damage in sums which exceed the jurisdiction of all lower Courts.

72. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third, Fourth, Fifth and Sixth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
August 12, 2013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiffs
WILLIAM DIGGS and ROBERT DAVIS,

888 Grand Concourse
Suite 1-O

Bronx, NY 10451
(718) 742-020

To:

CITY OF NEW YORK
CORPORATION COUNSEL

100 Church Street

4th Floor, Law Dept. , New York, New York 10007

P.O. Gerson Cabrera, Shield # 07520 , 44th Precinct 2 East 169th Street, Bronx NY 10452
and

Cpt. Johnny A. Orellana, Tax Reg #***679, 103rd Pct., 168-02 P.O. Edward Byrne Ave.,
Queens NY 11432

PLAINTIFF'S VERIFICATION

WILLIAM DIGGS affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


WILLIAM DIGGS

PLAINTIFF'S VERIFICATION

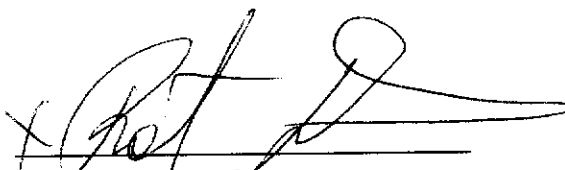
ROBERT DAVIS affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


ROBERT DAVIS